

SYLLABUS FOR THE 2026 BAR EXAMINATIONS

CRIMINAL LAW (10%)

NOTE: Only laws, rules, issuances, and jurisprudence pertinent to these topics as of **June 30, 2025** are examinable materials within the coverage of the 2026 Bar Examinations.

Unless otherwise indicated in the headings or in the entries themselves, the provisions of law cited below refer to the Revised Penal Code (RPC).

I. FUNDAMENTAL PRINCIPLES

- A. Construction or Interpretation of Penal Laws
 - 1. Effects of Repeal or Amendment
 - 2. Retroactive Effect of Penal Laws
 - 3. *Pro Reo* Principle or Rule of Lenity
 - 4. Suppletory Application of Revised Penal Code to Special Laws – RPC, Art. 10
- B. *Nullum Crimen, Nulla Poena Sine Lege*
- C. *Mala In Se* and *Mala Prohibita*
- D. Cardinal Principles of Criminal Law
 - 1. Generality
 - 2. Territoriality
 - 3. Prospectivity
- E. Constitutional Limitations on the Power to Enact Penal Laws
 - 1. Equal Protection
 - 2. Due Process
 - 3. Bill of Attainder
 - 4. *Ex Post Facto* Law
 - 5. Excessive Fines, Cruel, Degrading, or Inhuman Punishment

II. FELONIES AND CRIMINAL LIABILITY

RPC Book 1 and Related Laws

- A. Felonies
 - 1. Definition
 - 2. *Dolo* and *Culpa*
 - 3. Felony and Crime, Distinguished
 - 4. Gravity
 - 5. Stages of Execution
 - a. Subjective Phase and Objective Phase
 - b. Spontaneous Desistance
 - c. Attempted, Frustrated, and Consummated Stages
 - d. Preparatory and Overt Acts

6. Plurality of Crimes
 - a. Absorption Principle
 - b. Single Impulse Rule
 - c. Compound Complex Crime
 - d. Complex Crime Proper
 - e. Special Complex Crime or Composite Crimes
 - f. Continuous or Continuing Crime
- B. Criminal Liability
 1. *Actus Reus* and *Mens Rea*
 2. Criminal Causation
 - a. Proximate Cause
 - b. Efficient Intervening Cause
 3. *Aberratio Ictus*, *Error In Personae*, and *Praeter Intentionem*
 4. Impossible Crime
 5. Duty of Courts when Act is Non-punishable or Penalty is Excessive
 6. Participation in Acts Giving Rise to Criminal Liability
 - a. Principals, Accomplices, and Accessories
 - i. Fencers – P.D. No. 1612
 - ii. Obstructors of Criminal Prosecution – P.D. No. 1829
 - b. Conspiracy and Proposal
 - i. As a Mode of Incurring Criminal Liability
 - ii. As a Criminal Act
 7. Circumstances Affecting Criminal Liability
 - a. Justifying Circumstances – RPC, Art. 11
 - b. Exempting Circumstances – RPC, Art. 12
 - i. Minority – R.A. No. 9344, Sec. 6, as amended
 - ii. Battered Woman Syndrome – R.A. No. 9262
 - c. Mitigating Circumstances – RPC, Art. 13
 - d. Aggravating Circumstances – RPC, Art. 14
 - i. Using Loose Firearm – R.A. No. 10591, Sec. 29
 - ii. Being under the Influence of Dangerous Drugs – R.A. No. 9165, Sec. 25
 - iii. Using Information and Communications Technologies – R.A. No. 10175, Sec. 6
 - e. Alternative Circumstances – RPC, Art. 15
 - f. Absolutory Causes
 - g. Instigation and Entrapment
 8. Effect of Repeat Commission of Crimes
 - a. Recidivism – RPC, Art. 14(9)
 - b. Quasi-recidivism – RPC, Art. 160
 - c. Habituality – RPC, Art. 14(10)
 - d. Habitual Delinquency – RPC, Art. 62(5)
 9. Criminal Liability of Minors – R.A. No. 9344, as amended
- C. Penalties
 1. Classification
 2. Principal and Accessory Penalties

3. Duration and Effects
4. Application and Graduation
5. Determination of Imposable Penalty
6. Preventive Imprisonment
7. Subsidiary Penalty
8. Execution and Service
 - a. Community Service – R.A. No. 11362; A.M. No. 20-06-14-SC
 - b. Recognizance – R.A. No. 10389
 - c. Successive Service of Sentence
 - d. Three-Fold Rule
 - e. Indeterminate Sentence Law – Act No. 4103, as amended
 - f. Probation – P.D. No. 968, as amended
- D. Extinction of Criminal Liability
 1. Total Extinction
 - a. Death of Convict
 - b. Service of Sentence
 - c. Amnesty
 - d. Absolute Pardon
 - e. Prescription
 - i. Prescription of Crimes
 - ii. Act No. 3326
 - iii. Prescription of Penalties
 - f. Marriage between the Offender and the Offended Party
 2. Partial Extinction
 - a. Conditional Pardon – Act No. 1524
 - b. Commutation of Sentence
 - c. Good Conduct Time Allowance – R.A. No. 10592
 - d. Parole
- E. Civil Liability *Ex Delicto*
 1. Primary and Subsidiary
 2. Restitution, Reparation, and Indemnification
 3. Civil Liability of an Offender Exempted from Criminal Liability
 4. Share of Each Person Civilly Liable for a Felony
 5. Preference in Payment
 6. Extinction and Survival of Civil Liability *Ex Delicto*

III. CRIMES AND THEIR PENALTIES

RPC Book 2 and Related Special Laws

- A. Title One – Crimes against National Security and the Law of Nations
 1. Piracy – P.D. No. 532
 2. Terrorism – R.A. No. 11479
 3. Terrorism Financing – R.A. No. 10168
 4. Genocide and War Crimes – R.A. No. 9851, Secs. 4 and 5

- B. Title Two – Crimes against the Fundamental Laws of the State
 - 1. Torture – R.A. No. 9745
 - 2. Other Crimes against Humanity – R.A. No. 9851, Sec. 6
 - 3. Refusal of Emergency Treatment – Batas Pambansa [B.P.] Blg. 702, as amended by R.A. No. 8344
- C. Title Three – Crimes against Public Order
 - 1. Crimes relating to Firearms and Ammunition – R.A. No. 10591, Secs. 3 and 28-41
 - 2. Obstruction of Justice – P.D. No. 1829
 - 3. Highway Robbery – P.D. No. 532
- D. Title Four – Crimes against Public Interest
 - 1. Computer-related Forgery – R.A. No. 10175, Sec. 4(b)(1)
 - 2. Computer-related Fraud – R.A. No. 10175, Sec. 4(b)(2)
 - 3. Computer-related Identity Theft – R.A. No. 10175, Sec. 4(b)(3)
 - 4. Cyber-squatting – R.A. No. 10175, Sec. 4(a)(6)
- E. Dangerous Drugs Crimes – R.A. No. 9165, as amended by R.A. No. 10640 and its IRR; A.M. No. 18-03-16-SC
- F. Title Six – Crimes against Public Morals
 - 1. Gambling – P.D. No. 1602, as amended by R.A. No. 9287
 - 2. Immoral Doctrines – RPC, Arts. 133 and 201
- G. Title Seven – Crimes Committed by Public Officers
 - 1. Plunder – R.A. No. 7080, as amended
 - a. Definitions
 - b. Series and Combination
 - c. Pattern
 - d. Wheel and Chain Conspiracy
 - 2. Graft and Corrupt Practices – R.A. No. 3019, as amended
 - 3. Unethical Conduct – R.A. No. 6713
 - 4. Facilitation of Child Marriage – R.A. No. 11596
- H. Title Eight – Crimes against Persons
 - 1. Human Trafficking – R.A. No. 9208, as amended
 - 2. Violence Against Women and their Children (VAWC) – R.A. No. 9262
 - 3. Abuse of Children – R.A. No. 7610, as amended
 - a. Attempt to Commit Child Prostitution – Sec. 6
 - b. Child Prostitution and Other Sexual Abuse – Sec. 5
 - c. Attempt to Commit Child Trafficking – Sec. 8
 - d. Child Trafficking – Sec. 7
 - e. Obscene Publication and Indecent Shows – Sec. 9
 - f. Child Labor – Sec. 12
 - g. Child Pornography – R.A. No. 11930, in relation to R.A. No. 10175, Sec. 4(c)(2)
 - h. Child Marriage – R.A. No. 11596
 - 4. Rape, Sexual Exploitation, and Sexual Abuse – R.A. No. 11648
 - 5. Sexual Harassment – R.A. No. 11313, Secs. 3-7, 11-12, and 14
 - 6. Hazing – R.A. No. 8049, as amended by R.A. No. 11053

- I. Title Nine – Crimes against Personal Liberty and Security
 - 1. Offenses against Confidentiality, Integrity, and Availability of Computer Data and Systems – R.A. No. 10175, Sec. 4(a)(1) to (5)
 - 2. Hacking/Cracking – R.A. No. 8792, Sec. 33(a)
- J. Title Ten – Crimes against Property
 - 1. Fencing – P.D. No. 1612
 - 2. Cattle Rustling – P.D. No. 533
 - 3. Arson – P.D. No. 1613
 - 4. Carnapping – R.A. No. 10883; R.A. No. 11235
 - 5. Issuance of Bouncing Checks – B.P. Blg. 22; Administrative Circular [A.C.] No. 12-2000; A.C. No. 13-2001
 - 6. Swindling by Syndicate – P.D. No. 1689
 - 7. Intellectual Property Piracy – R.A. No. 8792, Sec. 33(b)
- K. Title Eleven – Crimes against Chastity
 - 1. Photo and Video Voyeurism – R.A. No. 9995
 - 2. Lascivious Conduct – R.A. No. 7610, Sec. 5(b)
- L. Title Twelve – Crimes against the Civil Status of Persons
 - 1. Unauthorized Use of Alias – Commonwealth Act No. 148, as amended by R.A. No. 6805; RPC, Arts. 177-178 and 348
- M. Title Thirteen – Crimes against Honor
 - 1. Cyber Libel – R.A. No. 10175, Sec. 4(c)(4)
- N. Title Fourteen – Quasi-offenses – *Morales v. People*, G.R. No. 240337, January 2, 2022

— NOTHING FOLLOWS —